

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR
MR. JUSTICE ISHTIAQ IBRAHIM

CRIMINAL PETITION NO.1264 OF 2025

(Against the judgment dated 18.06.2025, passed by
the High Court of Sindh at Karachi, in Criminal
Appeal No.138 of 2024)

Muhammad Iqbal

...Petitioner(s)

VERSUS

The State

...Respondent(s)

For the Petitioner(s): Mr. Shabbir Hussain Gigyani, ASC

For the State: Mr. Khadim Hussain, Addl.PG, Sindh

Date of hearing: 01.04.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- The prosecution case, in brief, as set out in First Information Report (FIR) No.49/2006, registered under Sections 302, 324 and 34 of the Pakistan Penal Code, 1860 ("PPC") at Police Station, Baldia Town, Karachi, on the report of the complainant Ismail Shah (PW-1) is that complainant along with his paternal nephew, Jameel Khan, originally residents of Bara, District Khyber, Khyber Pakhtunkhwa, had been residing with their families in Baldia Town, Karachi, for the last about 20/22 years and had previous enmity with Muhammad Iqbal ('the petitioner') and co-accused Qayum etc. On 29.04.2006, Jameel Khan was present in front of Farhan Clinic along with his relatives Javed Khan (PW-6) and Khan Rauf (PW-7), and friend Waseem Qazi, when at about 1900 hours, petitioner Muhammad Iqbal along with co-accused Qayum and two unknown accomplices, arrived there on two motorcycles and resorted to indiscriminate firing at Jameel Khan, as a result, he got hit and succumbed to injuries at the spot. Due to firing of the accused Waseem Qazi also received injuries. The

occurrence was witnessed by injured Waseem Qazi as well as Javed Khan (PW.6) and Khan Rauf (PW.7), who both thereafter shifted the dead body of the deceased and the injured to Jinnah Hospital, Karachi.

2. Upon the arrest of the petitioner Muhammad Iqbal and completion of investigation, a report under Section 173 of the Code of Criminal Procedure, 1898 ("the Code"), was submitted against him before the learned Additional Sessions Judge-II, Karachi West ("Trial Court"). After a full-dressed trial, the Trial Court vide judgment dated 26.01.2024, convicted the petitioner under Section 302(b) PPC, and sentenced him to rigorous imprisonment for life, along with payment of Rs. 500,000/-, as compensation under Section 544-A of the Code, to the legal heirs of the deceased and in default thereof to further undergo six months' simple imprisonment. The benefit of Section 382-B of the Code was also extended to him.

3. The High Court of Sindh at Karachi ("the High Court"), while dismissing the appeal filed by the petitioner-convict, maintained his conviction and sentence vide judgment dated 18.06.2025, which has been assailed by the petitioner-convict through the instant petition.

4. We have heard the learned counsel for the petitioner-convict as well as the learned Additional Prosecutor General, Sindh, and have carefully examined the record, evidence and the judgments rendered by the courts below with their able assistance.

5. According to the FIR, the occurrence took place on 29.04.2006 at about 7:00 p.m., whereas the same was reported on 30.04.2006 at 12:10 a.m., after a delay of approximately 4 hours and 30 minutes. No explanation, much less a plausible one, has been furnished by the complainant, Ismail Shah (PW-1), either in the FIR or in his statement for such delay.

6. It is an admitted position that the complainant is not an eyewitness to the occurrence. He himself stated that on the fateful day (29.04.2006) at the time of Maghrib prayer, he was present at his home offering prayers when he heard firing. Upon coming out, he saw his nephew, Jameel Khan, lying dead on the ground with

blood oozing from his body, while Waseem Qazi, who was present with the deceased, had sustained firearm injuries. He further deposed that PWs Khan Rauf and Javed Khan informed him that they were present with the deceased at the time of the incident and identified two of the four accused, namely Qayyum and the petitioner, Muhammad Iqbal. He further stated that at about 11:30 p.m., a police officer visited his house and recorded his statement under section 154 Cr.P.C., on the basis of which the FIR was registered. The time of reporting the incident as alleged by the complainant does not correspond with the time i.e. 12.10 A.M (night), mentioned in the FIR. He also failed to explain why neither the injured Waseem Qazi nor any of the alleged eyewitnesses, namely Khan Rauf and Javed Khan, who purportedly shifted the deceased and the injured to the hospital, lodged the report.

7. Statement of Abdul Razzaq SI (PW.3), is contradictory with the statement of the complainant. He deposed that upon receiving information about the occurrence, he proceeded to Jinnah Hospital, Karachi where he inspected the dead body of the deceased and recorded the statements of the injured Waseem Qazi and the complainant and thereafter went the place of occurrence and during spot inspection secured five empties through recovery memo Exh. 8/C, and then returned to the police station. PW Abdul Razaaq SI has not stated a single word about recording the statement of the complainant in his house as alleged by the complainant. In cross-examination, he stated that he received information from the control room at about 8:20 p.m. and reached Jinnah Hospital within one hour, i.e., at approximately 9:20 p.m. If this version of PW Abdul Razaaq SI is accepted, then the FIR ought to have been registered at about 9:20 p.m. on 29.04.2006, rather than at 12:10 a.m. on 30.04.2006. He further stated that several people were present at the hospital and that he prepared the memo of inspection of the dead body of the deceased and inquest report in the hospital on 29.04.2006. He further stated that he remained at the hospital for about two hours and prepared the memo for handing over the dead body of the deceased to his relatives between 10:00 p.m. and 10:30 p.m. He admitted that the distance between the place of occurrence

and the police station is about 2 to 3 kilometres, and through a shortcut, it is approximately two furlongs. Despite reaching the hospital within one hour of receiving the information about the incident, PW Abdul Razzaq SI failed to explain why the FIR was not registered on the same day, either on the statement of the injured Waseem Qazi or at the instance of the alleged eyewitnesses, namely Khan Rauf and Javed Khan, if they were infact present at the hospital with the deceased and the injured. This omission speaks volumes about the absence of the alleged eyewitnesses from the hospital and casts serious doubt on their claimed presence at the scene of occurrence as well.

8. Dr. Abdul Razzaq (PW-3) conducted the postmortem examination of Jameel Khan deceased. According to his statement, he received the dead body of the deceased on 29.04.2006 at 8:10 p.m., commenced the postmortem examination at 10:50 p.m., and concluded it at 11:45 p.m. on the same day. He deposed that he observed four firearm entry wounds on different parts of the body of the deceased, each having the same dimensions, i.e., 0.5 cm × 0.5 cm. The testimony of PW-3 indicates that the case was registered after the preliminary investigation. Moreover, the uniformity in the dimensions of the injuries on the person of the deceased contradicts the ocular account of the prosecution regarding the participation of four accused in the commission of the offence and suggests that the prosecution story has been exaggerated.

9. Adverting to the testimony of Javed Khan (PW-6), the alleged eyewitness and cousin of the deceased, he stated in cross-examination that the deceased and the injured were shifted by them to the hospital within 4 to 5 minutes of the incident. He denied that the dead body of the deceased was examined by the doctor in his presence and failed to recall the number of relatives present at the hospital. In contradiction to the statement of Abdul Razzaq SI, he he deposed that after shifting the deceased and injured to the hospital, he and PW Khan Rauf narrated the occurrence to the complainant, Ismail Shah, and then left for home to make funeral arrangements. He further stated that at about 11:30 p.m., the police reached the place of occurrence and, on their pointation, inspected the site and

secured five empties. Notably, this witness remained completely silent regarding the alleged arrival of Abdul Razzaq SI at the hospital in his presence and the recording of his statement there, as asserted by PW Abdul Razaaq. Similarly, Khan Rauf (PW-7), another alleged eyewitness, also did not state a single word about the presence of Abdul Razzaq SI or the recording of his statement in the hospital. Both the alleged eyewitnesses failed to explain why neither they nor the injured Waseem Qazi, lodged the report if they were indeed present at the hospital with the deceased and the injured.

10. Significantly, the injured Waseem Qazi, who was the most natural and material witness, bearing injuries sustained in the occurrence, was withheld by the prosecution without any plausible explanation. Although it is settled law that the prosecution is not bound to produce a large number of witnesses and that quality of evidence prevails over quantity, the non-production of such a crucial witness amounts to withholding the best available evidence. This omission gives rise to the presumption that, had he been produced, he would not have supported the prosecution's version. The legislature has addressed such situations through Article 129(g) of the Qanun-e-Shahadat Order, 1984, which permits the Court to draw an adverse inference against a party withholding material evidence. In view of the prosecution's failure to examine the most natural witness, it can reasonably be inferred that Waseem Qazi was not willing to support the prosecution's version, warranting a negative inference against it. In this regard, reliance may be placed on *Lal Khan v. The State* (2006 SCMR 1810).

11. The inordinate delay in lodging the FIR, without any plausible explanation; its registration on the following day after preliminary investigation; the failure of the complainant and the alleged eyewitnesses to explain why the occurrence was not reported either by the injured Waseem Qazi, or by any of them despite their alleged presence at the spot and in the hospital where their statements were purportedly recorded by Abdul Razzaq SI; and the non-production of the injured witness Waseem Qazi coupled with major contradictions and discrepancies in the prosecution evidence discussed above, cumulatively lead to the irresistible conclusion

that the occurrence did not take place in the manner alleged by the prosecution. Rather, it appears to have occurred in some other manner, which remains shrouded in mystery. The peculiar facts and circumstances of the case, particularly the contradictions in the statements of the complainant, the alleged eyewitnesses, and PW Abdul Razzaq SI, strongly suggest that the alleged eyewitnesses were present at the place of occurrence at the relevant time. Their presence appears to have been procured after preliminary investigation, and they were subsequently introduced as the complainant and eyewitnesses. In this backdrop, the possibility of false implication and the attribution of a tailored version cannot be ruled out. A similar situation came before this Court in *Iftikhar Hussain and others v. The State* (2004 SCMR 1185), wherein it was observed that:

“It is a case in which FIR has been registered after consultation and conducting preliminary investigation. If both these witnesses in fact had witnessed the incident, there was no occasion to cause delay in lodging of FIR. It is also significant to note that delay in lodging FIR under section 154 Cr.P.C. is condonable keeping in view the fact and circumstances of each case particularly in those cases where the accused persons have not been nominated in the FIR and the names of the witnesses who have seen the incident have also not been mentioned but where the complainant is fully aware about the culprits and the names of the witnesses are also known to him then if delay in lodging FIR is caused, it creates heavy duty upon the prosecution to examine the same satisfactorily otherwise the prosecution case would become doubtful”.

12. The five empties allegedly secured from the place of occurrence were not sent to the Forensic Science Laboratory for analysis. In view of the uniform dimensions of the firearm entry wounds on the person of the deceased, the occurrence appears to be the act of a single assailant. However, the prosecution has failed to bring on record even an iota of evidence to establish that the said assailant was the petitioner.

13. The findings recorded by the learned High Court to the effect that the occurrence took place on 29.04.2006 and that the petitioner was arrested on 27.10.2021 after remaining at large for about

fourteen years, and that such conduct, in the absence of any explanation, reflects a guilty conscience of the petitioner, do not appear to be legally sustainable. Firstly, it is borne out from the record that the petitioner is originally a resident of Bara, District Khyber (erstwhile FATA), and there is nothing available on the record in black and white to establish that any proceedings under Sections 204, 87 and 88, Cr.P.C. were ever initiated or lawfully pursued against him during the alleged period of absconsion. Secondly, it is an admitted position that no specific question with regard to the alleged absconsion was put to the petitioner-convict in his statement recorded under Section 342, Cr.P.C. It is by now a settled principle of law that any piece of evidence or circumstance not put to an accused in his statement under Section 342, Cr.P.C. cannot be used against him. Thirdly, it is also well-recognized that an accused may abscond for a variety of reasons, rightly or wrongly, including fear of arrest or harassment by the police. Mere absconsion, therefore, is not conclusive proof of guilt. It is trite law that absconsion is, at best, a corroborative piece of evidence and cannot, by itself, be treated as substantive evidence to sustain a conviction. Such corroborative evidence may only be considered in aid of other reliable evidence and not in isolation. Where the ocular account furnished by the prosecution is found to be doubtful or unworthy of reliance, mere absconsion of the accused would not be sufficient to sustain the conviction. In this regard, reference may be made to *Amir Gul vs the State* (1981 SCMR 182) and *Muhammad Vs Pasham Khan* (1986 SCMR 823).

14. In view of the totality of the facts and circumstances discussed hereinabove, and having regard to the material contradictions and inherent discrepancies in the prosecution's evidence, we are persuaded to hold that the prosecution has miserably failed to prove its case against the petitioner beyond reasonable doubt. The learned Courts below fell into patent error in recording the conviction of the petitioner by disregarding and overlooking such material infirmities in the prosecution case. The evidence brought on record by the prosecution is replete with doubts. It is by now a well-settled principle of criminal jurisprudence that even a single circumstance

creating reasonable doubt in the mind of a prudent person is sufficient to entitle the accused to its benefit as of right and not as a matter of grace. In this regard, reference may be made to Muhammad Zaman Vs the State and others (2014 SCMR 749). The aforesaid principle is deeply rooted in Islamic jurisprudence, which, more than fourteen centuries ago, laid down the salutary maxim that it is better to acquit ten guilty persons than to convict one innocent individual. This doctrine has, over time, evolved into the well-recognized rule that "it is better to err in acquittal than to err in conviction." The same finds manifestation in the principle of benefit of doubt, which is invariably extended in favour of the accused to ensure the safe and just administration of criminal justice.

15. Consequently, this petition is converted into an appeal and is allowed. The conviction and sentence awarded to the appellant by the learned Courts below are hereby set aside, and he is acquitted of the charge. He shall be released forthwith, if not required in any other case.

Islamabad the

1st April, 2026

Approved for Reporting

M.Siraj Afridi SPS